

2.	<u>30-2023-01316589-CU-PA-CJC</u> Beghtol vs. Saddleback Memorial Medical Center	Before the Court are seven (7) motions for further discovery responses (“Motions”) brought by plaintiff Robert Beghtol (“Plaintiff”), against Saddleback Memorial Medical Center, a California Nonprofit Corporation (“Defendant”). ROAs 319, 315, 304, 323, 311, 327, 331. Plaintiff originally sought an order pursuant to California Code of Civil Procedure sections 2030.300, 2033.290, and 2031.310 compelling Defendant to: (i) provide further, verified, code compliant responses to the above mentioned Motions; (ii) provide a privilege log or other legally sufficient descriptions identifying information withheld and the basis for withholding it to the extent Defendant withholds any responsive documents or information; and (iii) provide such other and further relief as the Court deems just and proper. ROAs 319, 315, 304, 323, 311, 327, 331. Defendant requests that the Court: (i) deny Plaintiff’s Motions in their entirety; and (ii) impose sanctions against Plaintiff and Plaintiff’s counsel, jointly and severally, in the amount of \$4,860.00. ROAs 372, 374, 376. Plaintiff has since limited the relief sought in his replies to the following motions: (i) Motion to Compel Further Responses to Requests for Production, Set Two (ROA 304); (ii) Motion to Compel Further Responses to Special Interrogatories, Set One (ROA 319); and (iii) Motion to Compel Further Responses to Form Interrogatories, Set Two (ROA 315). Furthermore, Plaintiff withdrew the following motions: (i) Motion to Compel Further Responses to Requests for Admissions, Set One; (ii) Motion to Compel Further Responses to Requests for Production, Set Three; (iii) Motion to Compel Further Responses to Requests to Form Interrogatories, Set Three; and (iv) Motion to Copel Further Responses to Requests for Admissions, Set two. ROA 366. Plaintiff now asks the Court to: (i) find that California Code of Civil Procedure section 2024.050 favors relief and permit the instant Motions to be heard after the discovery cutoff date; (ii) hear and determine the Motions on the merits and
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		order further responses and productions as warranted; (iii) deny Defendant’s requests for monetary sanction, and (iv) in the alternative, grant leave to proceed under California Code of Civil Procedure section 2024.050, with such continuance or additional response time as the Court deems appropriate. ROAs 388, 384, 378, 319, 315, 304. Although Plaintiff narrowed their requests for relief, which the Court appreciates, the instant Motions remain procedurally defective. Timeline to Bring Discovery Motions Under California Civil Code of Procedure section 2024.020, any party is “entitled as a matter of right to complete discovery proceeding on or before the 30th day, and to have motions concerning discovery <i>heard</i> on or before the 15th day, before the date initially set for trial.” Cal. Civ. Proc. Code § 2024.020 (emphasis added). Additionally, “a continuance or postponement of the trial date does not operate to reopen discovery proceedings.” <i>Id.</i> The <i>Pelton-Sheperd</i> court noted, “if a party properly notices a discovery motion to be <i>heard</i> on or before the discovery motion cutoff date, that party has a right to have the motion heard.” <i>Pelton-Sheperd Indus., Inc. v. Delta Packaging Products, Inc.</i>, 165 Cal. App. 4th 1568, 1586 (2008) (emphasis added and omitted). Therefore, “[b]y negative implication, a party who notices a discovery motion to be heard <i>after</i> the discovery motion cutoff date does not have a right to have the motion heard. <i>Id.</i> California Code of Civil Procedure section 2024.050(a) allows, “[o]n motion of any party, the court [to] grant leave to complete discovery proceedings, or to have a motion concerning discovery heard, closer to the initial trial date, or to reopen discovery after a new trial date has been set[.]” provided the motion is accompanied by a meet and confer declaration under California Code of Civil Procedure section 2016.040. Cal. Civ. Proc. Code § 2024.050(a) (emphasis added). Trial was initially set in this matter for July 6, 2026. ROA 372 p. 3. On June 5, 2026, the trial court continued trial to
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	February 1, 2027. ROA 335. The trial court expressly declined to reopen discovery and ordered discovery closed on June 8, 2026. <i>Id.</i> On June 8, 2026, Plaintiff served the instant Motions upon Defendant by email. ROAs 319 p. 9; 315 p. 9; 304 p. 9. The Court ordered the parties to attend an informal discovery conference regarding the Motions on July 21, 2026, fifteen (15) days <i>after</i> the date initially set for trial. ROA 307. Although Plaintiff has since narrowed the relief requested, the Court finds that Plaintiff <i>did not</i> move any court to reopen discovery <i>prior to or concurrently with</i> filing the instant Motions. Accordingly, Plaintiff's Motions are untimely and are therefore DENIED. Meet and Confer Requirements re: Motions to Compel Further Responses to Discovery Demands California Code of Civil Procedure sections 2030.300, and 2031.310, allows a requesting party to move for an order compelling further responses to interrogatories and production demands if the demanding party deems that a response is incomplete, inadequate, evasive, or an objection is without merit or is too general. Cal. Civ. Proc. Code §§ 2030.300(a), 2031.310(a). Motions for further discovery responses must be accompanied by a meet and confer declaration that complies with California Code of Civil Procedure section 2016.040. Cal. Civ. Proc. Code §§ 2030.300, 2031.310. Effective January 1, 2026, a meet and confer declaration "shall state facts showing a reasonable and good faith attempt" on the part of the moving party to meet and confer either in <i>person, telephonically, or by videoconference</i>; e-mail alone will not suffice. Cal. Civ. Proc. Code § 2016.040(a). Additionally, the moving party's declaration "shall include whether [they have] met and conferred, including through an electronic communication, regarding the retention of a certified shorthand reporter to report the hearing on the motion." Cal. Civ. Proc. Code § 2016.040(b) (emphasis added). Lastly, "[t]he Discovery Act requires that, <i>prior</i> to the
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		initiation of a motion to compel, the moving party declare that he or she has made a serious attempt to obtain ‘an informal resolution of each issue.’” <i>Townsend v. Sup. Ct.</i>, 61 Cal. App. 4th 1431, 1435 (1998) (citing Cal. Civ. Proc. § 2025; <i>DeBlase v. Sup. Ct.</i>, 41 Cal. App. 4th 1279, 1284 (1996)) (emphasis added). Here, Plaintiff served the instant Motions upon Defendant on June 8, 2026, by email. ROAs 319 p. 9; 315 p. 9; 304 p. 9. Plaintiff has since brought to this Court’s attention, in their replies, that Plaintiff met and conferred telephonically following the parties informal discovery conference on July 21, 2026. ROA 378. However, as the <i>Townsend</i> court pointed out, the meet and confer requirements are intended to take place <i>prior to</i> the initiation of a motion to compel, not after. <i>Townsend, supra</i>, 61 Cal. App. 4th at 1435. As the instant Motions are subject to the updated requirements of California Code of Civil Procedure section 2016.040, the Court finds Plaintiff’s declarations in support of the instant Motions failed to: (i) state facts showing a reasonable and good faith attempt by Plaintiff to meet and confer <i>in person, telephonically, or by videoconference</i>; and (ii) state facts about whether Plaintiff has met and conferred regarding the retention of a certified court reporter to report the hearing on the Motions as required by California Code of Civil Procedure section 2016.040. <i>See generally</i> ROAs 302, 289, 294, 290, 286, 282, 278. Consequently, Plaintiff’s Motions are also procedurally invalid and are therefore DENIED on separate and independent bases. Sanctions re: Motion to compel further responses Under California Code of Civil Procedure Code sections 2031.310(h), and 2030.300(d), a court must impose monetary sanctions against “any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response” to interrogatories and requests for production, “unless [the court] finds that the one subject to the sanction acted with substantial justification or other circumstances make the imposition of the sanction unjust.” Cal. Civ Proc. Code §§ 2031.310(h), 2030.300(d). The term “substantial justification” means “a justification
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	that ‘is clearly reasonable because it is well grounded in both law and fact.’” <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1287 (2024) (quoting <i>Doe v. United States Swimming, Inc.</i>, 200 Cal. App. 4th 1424, 1434, (2011)). Beyond substantial justification, sanctions may be deemed unjust under other circumstances. Courts have discretion to consider the proportionality of the sanction to the misconduct. <i>See Kwan Software Eng’g, Inc. v. Hennings</i>, 58 Cal. App. 5th 57, 77 (2020). The Court “must make an explicit finding this exception exists,” however, “the court <i>need not</i> make an explicit finding the exception does not exist” <i>Parker v. Wolters Kluwer United States, Inc.</i>, 149 Cal. App. 4th 285, 294 (2007) (emphasis added). Here, as outlined above, Plaintiff’s Motions are: (i) untimely; and (ii) the declarations in support of the instant Motions are insufficient under California Code of Civil Procedure section 2016.040. <i>See generally</i> ROAs 302, 289, 294, 290, 286, 282, 278. The Court finds no substantial justification in fact or law for Plaintiff to bring procedurally improper Motions before the Court. Accordingly, monetary sanctions are appropriate to prevent future misuse. Assigning Liability for Sanctions California Code of Civil Procedure section 2023.030 permits a court to impose monetary sanctions on “one engaging in the misuse of the discovery process, or any attorney advising that conduct” or any party who “unsuccessfully assert[s] that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both.” Cal. Civ. Proc. Code § 2023.030(a). Courts <i>shall</i> impose monetary sanctions absent a finding “that the one subject to the sanction acted with substantial justification.” <i>Id.</i> When the misconduct is clearly attributable to one party, courts should generally sanction only that party. However, when monetary sanctions are sought against an attorney for
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	client misconduct, the court <i>must find</i> that the attorney advised the client to engage in the sanctionable conduct. <i>Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 799 (2020) (emphasis added). The burden then shifts to the attorney to prove that they did not provide such advice. <i>Id.</i> (citing <i>Ghanooni v. Super Shuttle</i>, 20 Cal. App. 4th 256, 260-261 (1993)); compare <i>Corns v. Miller</i>, 181 Cal. App. 3d 195, 200-201 (1986) (a court did not err in ordering monetary sanctions against an attorney where the attorney did not submit an opposition to the motion for sanctions, did not appear at the hearing, and failed to discharge his burden of proving he did not counsel disobedience) with <i>Kwan, supra</i>, 58 Cal. App. 5th at 83 (finding substantial evidence that attorneys did not advise disobedience where attorneys provided multiple declarations, under penalty of perjury, in addition to e-mails and testimony in their defense). If the <i>client</i> engaged in the misconduct, for example, by refusing to answer discovery, hiding documents, or failing to appear for deposition, then sanctions should be imposed upon them. See <i>Ghanooni, supra</i>, 20 Cal. App. 4th at 261 (finding no liability for counsel for monetary sanctions where client refused to submit to x-rays and attorney's declarations shows attorney attempted to convince client to comply). If the <i>attorney</i> is responsible, for instance, by instructing a client not to answer without substantial justification, failing to meet and confer in good faith, or failing to provide timely responses, the sanction can be imposed directly on the attorney. See generally <i>Ghanooni, supra</i>, 20 Cal. App. 4th at 260-261; <i>Ellis v. Toshiba America Info. Sys.</i>, 218 Cal. App. 4th 853, 879-80 (2013); see <i>Deck v. Developers Inv. Co., Inc.</i>, 89 Cal. App. 5th 808, 829-832 (2023). If the Court finds that both share responsibility, then sanctions can be imposed jointly and severally. See generally <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 799. "An attorney may only be penalized . . . for advising disobedience. It is not enough that the attorney's actions were in some way improper and contributed to the
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		disobedience of the court order." <i>Corns, supra</i>, 181 Cal. App. 3d at 200; <i>see Ghanooni, supra</i>, 20 Cal. App. 4th at 261. Illustrating this point, the <i>Ghanooni</i> court reversed a lower court's order imposing sanctions on both the client and the attorney and instead ordered sanctions only against the client. <i>Id.</i> The court found that counsel's mere opposition to a motion to compel X-rays from their client did not give rise to an inference that counsel advised disobedience in the first instance, where the client's refusal was attributable to their generalized fear of exposure to radiation, which is not sufficient justification to refuse a motion to compel. <i>Ghanooni, supra</i>, 20 Cal. App. 4th at 261. Here, the Court finds that Plaintiff's failure to timely bring these Motions before the Court along with Plaintiff's failure to accompany their Motions with adequate meet and confer declarations under California Code of Civil Procedure section 2016.040, is not attributable to client misconduct. Indeed, the Court finds that the record shows unequivocally that the misconduct is attributable to Plaintiff's counsel. Accordingly, monetary sanctions are appropriate upon Plaintiff's counsel only. Determining a Reasonable Sanctions Amount Three principles guide the award and amount of attorney's fees and costs imposed as a discovery sanction. <i>See Cornerstone, supra</i>, 56 Cal. App. 5th at 790-91 (compulsion, causation, and reasonableness). "The amount of monetary sanctions is limited to the 'reasonable expenses, including attorney's fees' that a party incurred as a result of the discovery abuse." <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code § 2023.030(a)). The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award. <i>Id.</i>, (citing <i>Parker, supra</i>, 149 Cal. App. 4th at 294). "After a motion to compel discovery has been filed, further expenses incurred in meeting and conferring on the discovery dispute, whether it be through private mediation or normal channels of communication, are not compensable
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		as discovery sanctions." <i>In re Marriage of Moore, supra</i>, 102 Cal. App. 5th at 1301 (emphasis added). Having considered the aforementioned principles, the Court finds that monetary sanctions in the amount of \$4,860.00 sought by Defendant are reasonable and appropriate. Accordingly, Plaintiff's Motions are DENIED and monetary sanctions are IMPOSED upon Plaintiff's counsel of record, Gleason and Bigonger LLP, in the total collective amount of \$4,860.00, pursuant to California Code of Civil Procedure section 2023.010, due and payable to Defendant's counsel of record, Godes and Preis LLP, no later than sixty (60) days after receiving notice of this Order. Defendant to give notice.
3.	<u>30-2023-01318571-CU-BC-NJC</u> Brower Law Group, APC vs. Feathers	Before the Court is a Motion to Compel Deposition Testimony and Sanctions, brought by plaintiff Brower Law Group, APC, ("Plaintiff") against defendant Jess Feathers ("Defendant"). ROA 94 Plaintiff requests an order, pursuant to California Code of Civil Procedure Section 2025.450 compelling Defendant to attend a deposition and provide testimony. Additionally, Plaintiff seeks sanctions against Defendant and Defendant's counsel in the amount of \$3,000 payable to Plaintiff. ROA 94 The Court notes that, pursuant to its minute order (ROA 104), both parties submitted on the Court's tentative ruling, and Defendant's deposition was ordered to proceed on August 12, 2026. Accordingly, the <i>only</i> remaining issue for the Court to address on the merits is sanctions. The Court further notes that Defendant's opposition was untimely filed on September 8, 2026. Accordingly, the Court will exercise its discretion to only consider the Plaintiff's declaration submitted in support of the motion. ROA 94 p. 8. Sanctions re: Motion to Compel Deposition